

did not make due inquiry as to the plaintiff's character of the persons to whom she referred, was altogether idle and immaterial; for that, assuming he was wrong in this respect, it would amount to nothing more than an improper rejection of evidence, which never could be suggested to form a ground of action against the judge: That, as to the warrant, if necessary, the existence of a valid warrant at the time would be presumed, and that, at all events, the formal warrant afterwards drawn up was sufficient: That, as to the prison, if that was a question for the jury, they had disposed of it by finding that it was a reasonably fit and proper place, and, if a question of law, the evidence shewed it to be a legal one: *Smith v. Hillier and Clerke*, Cro. Eliz. 167, *Es* [545] *parte Evans*, 8 T. R. 172: And that the mere commitment to a wrong gaol was not the subject of an action. Com. Dig. Imprisonment (B.).

Cur. adv. vult.

ERLE, C. J., now delivered the judgment of the court:—

In this case it has been contended, on behalf of the defendant, that the rule to enter a verdict for him should be made absolute, either on the leave reserved at the trial upon the close of the plaintiff's case, or on the finding of the jury: and we are of opinion that he is entitled to succeed on each of these grounds.

The declaration was for imprisonment.

The plea set out the charter, which impowered the university, by their officers, to make search in the town of Cambridge for common women and other persons suspected of evil, and all such persons as they should, upon such search, find guilty or suspected of evil, to punish by imprisonment or otherwise as to the chancellor or vice-chancellor should seem fit. The plea then proceeded to allege that the charter aforesaid had been confirmed by statute as fully as if it had been repeated verbatim therein: and that the proctors, by command of the university, on a search in Cambridge, found the plaintiff and other women assembled in a carriage, in company with some scholars of the university, and then reasonably suspecting the plaintiff of evil,—that is, of so being in company with the said scholars for idle, disorderly, and immoral purposes,—apprehended the plaintiff, and brought her before the defendant, the vice-chancellor, in order for her examination touching the premises; whereupon the defendant did hear and examine the plaintiff, and was satisfied of the matters aforesaid, and caused her to be punished by imprisonment in a fit and proper place of confinement.

[546] The replication admitted the statute, and took issue upon the rest of the plea.

The plaintiff in her evidence stated that she had been apprehended under the circumstances alleged in the plea, and brought before the vice-chancellor by the proctors, and that the vice-chancellor made inquiries of her respecting the said circumstances, and heard her answers and her request that reference might be made to some persons for her character, and then pronounced sentence of imprisonment for fourteen days in the Spinning House, where she was subjected to the treatment complained of in the declaration, the same being, as far as appeared, the usual course. She also stated that she had no disorderly or immoral purpose: that the charge was not made, and the witnesses were not examined, in her presence; that no inquiry was made of the persons to whom she had referred for her character; that there was no examination of any one upon oath; and that there was no warrant of commitment, as far as appeared to her.

The other witnesses for the plaintiff corroborated those statements, and added nothing that is relevant to the present inquiry.

An admission was made by the plaintiff's counsel, that the defendant, as vice-chancellor, had throughout the proceedings complained of, acted according to the best of his judgment and discretion.

The counsel for the defendant thereupon contended, that, on the assumption of this evidence being true, all the material allegations in the plea, which were put in issue by the replication, were proved thereby; that there was no question of fact for the jury, and that therefore they ought to be directed to give their verdict for the defendant.

The substance of the contention was, that this evidence proved that the vice-chancellor acted throughout [547] in the capacity of a judge, holding office under the charter, and adjudicating, according to the best of his judgment, upon a question within his jurisdiction, brought before him for judicial determination; and that, if this was true in fact, it followed that in law no action of trespass could be sustained